Hustle Hive CIC – Information Sharing and Confidentiality Policy

Item	Detail
Organisation	Hustle Hive CIC, company no. 16691281
Data protection lead	Kieron Davis, Director
Designated Safeguarding Lead	Gavin Copland, Director
Version	2.0
Effective from	October 2026
Next review	September 2027, or sooner after a breach, a safeguarding incident or a change in guidance

1. Purpose and scope

We work closely with commissioning schools, local authorities, parents and carers, and health, SEND, social care and safeguarding professionals. Sharing the right information at the right time keeps children safe and helps them get the support they need. Sharing the wrong information, or sharing it carelessly, can cause real harm.

This policy explains how we keep information confidential, and how we decide when and how to share it. It applies to everyone who works or volunteers with us, and to information in every form: spoken, written, on paper, by phone, by email and online. It should be read alongside our Data Protection Policy and our Safeguarding and Child Protection Policy.

We follow UK GDPR and the Data Protection Act 2018, *Keeping Children Safe in Education*, *Working Together to Safeguard Children* and the government's advice for practitioners on information sharing.

2. The core principle

We respect confidentiality, but it is never absolute. We will share information when we have a lawful and good reason to, especially when someone may be at risk of harm.

Staff must never promise a child, parent or anyone else that they will keep something secret.

3. Everyday confidentiality

Confidential information includes anything about a learner, family or member of staff that is not public, such as home circumstances, health, SEND, behaviour, safeguarding, social care involvement, complaints and disciplinary matters. It does not need to be labelled "confidential".

Staff must:

- only look at information they need for their role, never out of curiosity;
- never discuss learners with friends or family, on social media, or where others can overhear, such as in public, on transport or in front of other learners;
- never leave paperwork or screens where visitors or learners can see them;
- never send sensitive information through personal email, messaging apps or social media;
- never enter identifiable information into public AI tools; and
- keep confidentiality after they stop working with us, and return or delete any Hustle Hive CIC information they hold.

4. The seven golden rules for sharing

When deciding whether to share information, ask whether sharing is:

1. **Necessary:** is there a real reason to share?
2. **Relevant:** only share what relates to that reason.
3. **Proportionate:** share no more than is needed.
4. **Accurate:** make sure it is correct, and say clearly what is fact and what is opinion.
5. **Timely:** share promptly, especially where a delay could put someone at risk.
6. **Secure:** use a safe method and check who you are sending it to.
7. **Recorded:** write down what you shared, with whom, when and why, or why you decided not to share.

5. Safeguarding comes first

If you are worried that a child is being harmed, is at risk of harm or exploitation, or poses a risk to someone else, tell the DSL straight away. Never hold back because:

- the child asked you not to tell anyone;
- a parent or carer asked you to keep it private;
- you are worried about data protection or don't have consent; or
- you think someone else has already reported it.

Data protection law is never a reason to delay protecting a child. If a child tells you something, follow the steps in section 5 of our Safeguarding and Child Protection Policy: listen, don't promise secrecy, explain who you will need to tell, and record it in their words.

6. Consent

Where it is safe and appropriate, we tell families and learners when we plan to share information and seek their agreement. We do not always need consent, and we will share without it where we have another lawful reason. Examples include when sharing is needed to protect a child, prevent or detect a crime, protect someone in an emergency or meet a legal duty, or when asking could increase the risk to a child. Where we share without consent, the DSL records why.

7. Quick decision guide

1. **Is someone at immediate risk of serious harm?** Call 999 and act to protect them, then tell the DSL.
2. **Is it a safeguarding concern?** Tell the DSL now. They decide what to share.
3. **Is there a legitimate reason to share?** If not, don't share.
4. **Is the information relevant and the minimum needed?**
5. **Is the person entitled to receive it, and have you checked who they are?**
6. **Are you using a secure method?**
7. **Have you recorded what you shared and why?**

If you are unsure, ask the DSL about safeguarding, or Kieron Davis about anything else. Never let uncertainty delay action to protect a child.

8. Working with commissioning schools and local authorities

Before a placement

We ask the commissioning school or local authority for the information we need to decide whether we can meet a learner's needs safely. This includes SEND and EHCP information, medical needs, safeguarding history, any social worker involvement, attendance, behaviour, known triggers, and any history of violence, absconding, substance misuse, exploitation, sexualised behaviour or fire-setting. If significant information is withheld, we may not be able to start or continue a placement safely.

During a placement

We share attendance (on the day), progress, engagement, behaviour, incidents, welfare and reviews with the commissioning school, and tell its DSL about safeguarding concerns the same day. If significant new information comes to light, we review the learner's risk assessment and discuss next steps with the school.

When a placement ends

We send a final report and pass on any relevant safeguarding records securely to the school's DSL, recording what we sent and when. We only keep the records our Records Retention Policy requires.

Where we share information regularly with a school or local authority, we agree the arrangements in writing, either in our placement agreement or a separate data sharing agreement.

9. Parents and carers

We work openly with parents and carers and share information about attendance, progress, behaviour, incidents and achievements. We will not share information with a parent or carer where it could put a child or someone else at risk, affect a safeguarding or police investigation, or reveal information about another person without good reason. The DSL decides in these cases. We check who has parental responsibility and take account of any court orders.

10. Learners

We explain to learners, in a way they understand, what information we keep and who might see it, and we listen to their wishes and feelings. We are honest with them about when we cannot keep something confidential.

11. Other professionals

The DSL normally leads on sharing information with children's social care and the police. Staff may share relevant information with health professionals, SEND professionals and specialist services when it is needed to support a learner. At multi-agency meetings, such as child protection conferences, child in need meetings and EHCP reviews, we share information that is relevant, factual and proportionate, and make clear what is fact and what is opinion.

12. Requests for information

Never hand over confidential information just because someone asks. Check who is asking, their authority, why they need it and what they actually need. Pass requests to a Director or the DSL.

- **Phone calls:** confirm the caller's identity, for example by calling them back through their organisation's main number.
- **Police, courts and solicitors:** check the request is genuine and in writing where possible. The DSL or a Director decides how to respond, and may take legal advice.
- **Subject access requests:** pass to Kieron Davis under our Data Protection Policy.
- **Media:** staff must not give any information to journalists. All media enquiries go to a Director, and no learner involved in a safeguarding matter is ever identified.

13. Sharing securely

- Use Hustle Hive CIC email accounts, the commissioning school's secure system or password-protected files for sensitive information, and send the password separately.
- Before sending an email, check the address (watch out for auto-complete), the attachments and that everyone copied in needs to see it.
- Never use personal email, personal messaging apps, social media or open links for learner information.
- Have confidential conversations in private, never where others can overhear.
- In an emergency where a personal phone has to be used, share only what is essential, move it to an approved system and delete it from the phone the same day.
- Visitors and contractors are never given access to learner information unless it is necessary and authorised.

14. Recording

Records should be accurate, made promptly, signed and dated, and should make clear what is fact, what is opinion and what someone else told you. When you share information, record what you shared, with whom, when, how and why. Safeguarding records are kept by the DSL under our Safeguarding policy.

15. Staff information

Information about staff, volunteers and job applicants is also confidential. It is only used and shared for legitimate reasons, such as employment, payroll, training, safer recruitment and legal duties. Allegations, disciplinary and health information are handled with particular care.

16. Breaches

If confidential information is lost, sent to the wrong person or seen by someone who should not see it, tell Kieron Davis straight away and follow our Personal Data Breach Policy. If the breach could put a child at risk, also tell the DSL immediately. Deliberate or reckless disclosure of confidential information is serious misconduct and may lead to disciplinary action.

17. Training and review

All staff learn about this policy during induction and in annual safeguarding and data protection training. This policy is reviewed every year, and sooner after a breach, a safeguarding incident or a change in guidance.

Related policies

Read this policy alongside our Data Protection, Parent and Learner Privacy Notice, Personal Data Breach, Records Retention, Safeguarding and Child Protection, and Online Safety and Media policies, and our staff code of conduct.

Approval and signatures

This policy has been approved by the Board of Directors of Hustle Hive CIC.

Name	Position	Signature	Date
Gavin Copland	Director and DSL		

Name	Position	Signature	Date
Kieron Davis	Director and data protection lead		
Carey Viala	Director		
Sarah Smith	Director		